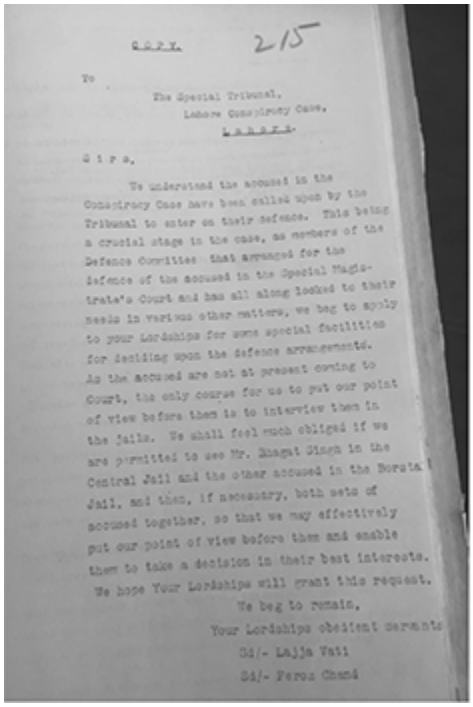
(17) On 28 August 1930, the lawyer Feroz Chand, on behalf of Bhagat Singh's defence committee, which had 'arranged for the defence of the accused in the Special Magistrates Court and has all along looked to their needs in various other ways', now pleaded with the special tribunal 'for some special facilities for deciding upon the defence arrangements'. It was a critical moment in the trial, because the accused had now been called upon to enter their defence. So, given that this was 'a crucial stage in the case', what was being demanded was that 'as the accused are not at present coming to court, the only course for us to put our point of view before them is to interview them in the jails' (Lahore Archives, previously unpublished). A trial that had started over a year ago before the special magistrate had now been reduced to this. An order by Mr Justice Hilton promptly acceded to this request. It was a different matter whether the court's order would be carried out in full.



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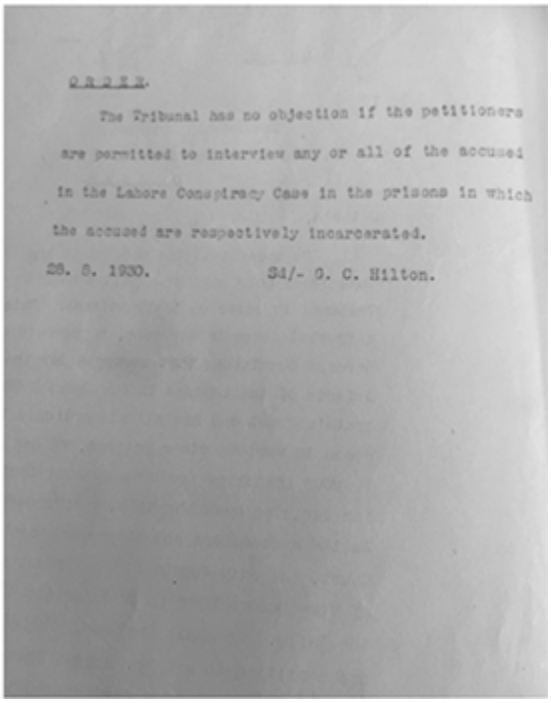
To

The Special Tribunal,
Lahore Conspiracy Case,
LAHORE.

Sirs,

We understand the accused in the Conspiracy Case have been called upon by the Tribunal to enter on their defence. This being a crucial stage in the case, as members of the Defence Committee that arranged for the defence of the accused in the Special Magistrate's Court and has all along looked to their needs in various other matters, we beg to apply to your Lordships for some special facilities for deciding upon the defence arrangements. As the accused are not at present coming to Court, the only course for us to put our point of view before them is to interview them in the jails. We shall feel much obliged if we are permitted to see Mr. Bhagat Singh in the Central Jail and the other accused in the Borstal Jail, and then, if necessary, both sets of accused together, so that we may effectively put our point of view before them and enable them to take a decision in their best interests. We hope Your Lordships will grant this request.

We beg to remain,
Your Lordships obedient servants
Sd/- Lajja Pati
Sd/- Feroz Chand



ORDER.

The Tribunal has no objection if the petitioners are permitted to interview any or all of the accused in the Lahore Conspiracy Case in the prisons in which the accused are respectively incarcerated.

28. 8. 1930. Sd/- G. C. Hilton.

(18) In this 'conspiracy' case, where the elements of the conspiracy were being made up as the trial progressed, there was much dissatisfaction on the part of the accused as to the state of the evidence against them. This is why